

Act Utilitarianism

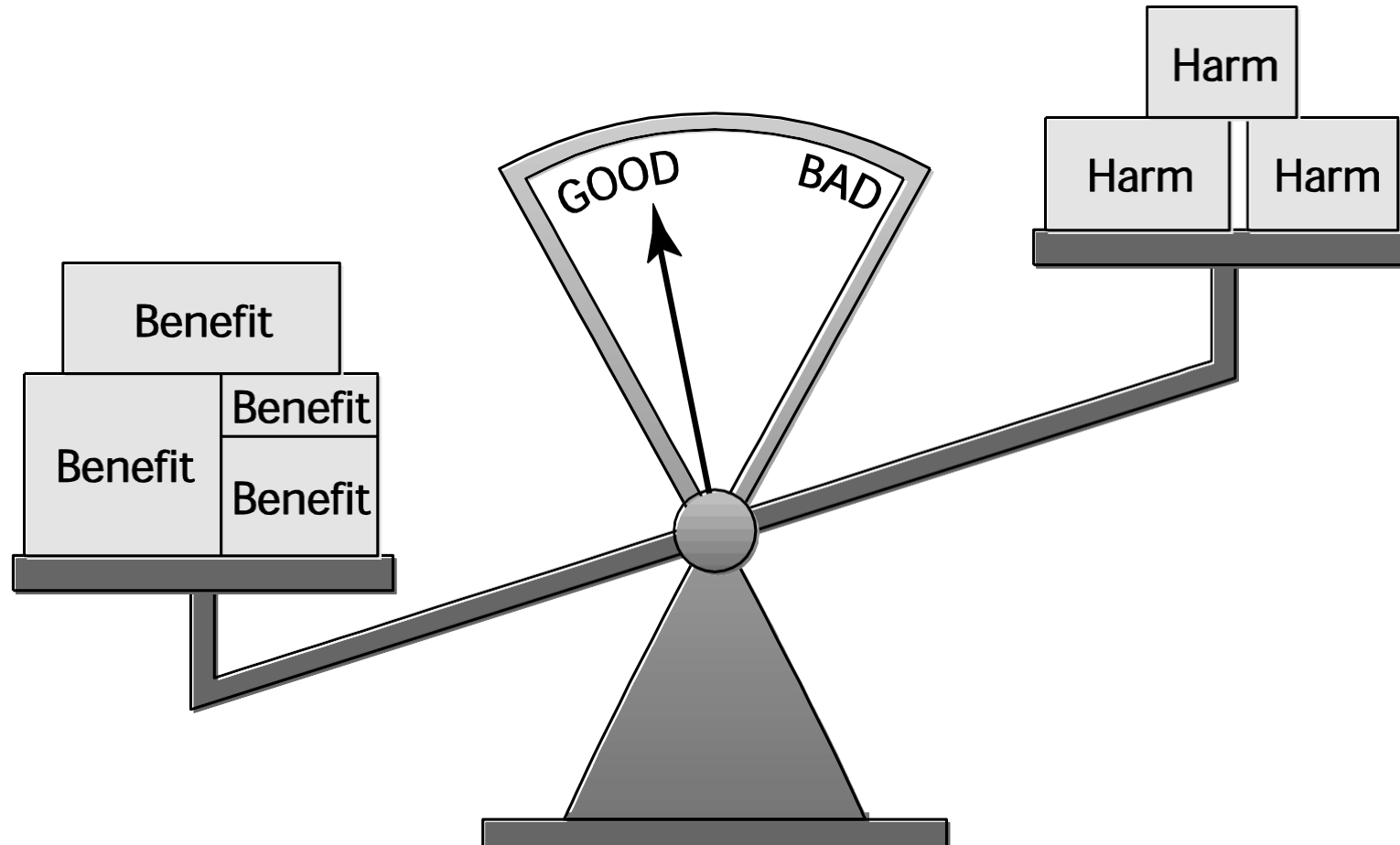
Principle of Utility

- Jeremy Bentham and John Stuart Mill
- An **action is good** if its **benefits exceeds its harms**
- An action is **bad** if its **harms exceed its benefits**
- Utility: tendency of an object to **produce happiness** or prevent unhappiness for an individual or a community
- Happiness = advantage = benefit = good = pleasure
- Unhappiness = disadvantage = cost = evil = pain

Principle of Utility (Greatest Happiness Principle)

An action is **right** (or **wrong**) to the extent that it **increases (or decreases) the total happiness** of the affected parties.

Principle of Utility



Act Utilitarianism

- Utilitarianism
 - Morality of an action has nothing to do with intent
 - Focuses on the consequences
 - A consequentialist theory
- Act utilitarianism
 - Add up change in happiness of all affected beings
 - $\text{Sum} > 0$, action is good
 - $\text{Sum} < 0$, action is bad
 - Right action to take: one that maximizes the sum

Bentham: Weighing Pleasure/Pain

- Intensity
- Duration
- Certainty
- Propinquity (proximity)
- Fecundity (fertility)
- Purity
- Extent

Case for Act Utilitarianism

- Focuses on happiness
- Down-to-earth (practical)
- Comprehensive

Case Against Act Utilitarianism

- Unclear whom to include in calculations and how far out into the future to consider
- Too much work
- Ignores our innate sense of duty
- We cannot predict consequences with certainty
- Susceptible to the problem of moral luck
- Overall, a workable ethical theory

Rule Utilitarianism

Applying Principle of Utility to Rules

- We ought **to adopt moral rules** which, if followed by everyone, will lead to the greatest increase in total happiness
- **Act** utilitarianism applies Principle of Utility to **individual actions**
- **Rule** utilitarianism applies Principle of **Utility to moral rules**

Case for Rule Utilitarianism

- Not every moral decision requires performing utilitarian calculus
- Moral rules survive exceptional situations
- Avoids the problem of moral luck
- Reduces the problem of bias
- Appeals to a wide cross-section of society

Case Against Utilitarianism in General

- All consequences must be measured on a **single scale**.
 - All units must be the same in order to do the sum
 - In certain circumstances utilitarians must quantify the value of a human life
- Utilitarianism **ignores the problem of an unjust distribution of good consequences**.
 - Utilitarianism does **not** mean “the greatest good of the greatest number”
 - That requires a **principle of justice**
 - What happens when a conflict arises between the Principle of Utility and a principle of justice?
- Despite weaknesses, both act utilitarianism and rule utilitarianism **are workable ethical theories**

Social Contract Theory

Social contract theory

Social contract theory is a philosophical concept that suggests people agree to give up some of their individual freedoms in exchange for the protection and benefits of living in a society, essentially creating a "contract" between citizens and their government where they abide by laws in return for security and order; this theory is often used to explain the origins of political authority and the moral obligations individuals have within a society.

Basis of Social Contract Theory

- Thomas Hobbes
 - In a “state of nature” our lives would be “independent, poor, horrible, harsh, and short”
 - We ***implicitly*** (tactically) accept a social contract
 - Establishment of moral rules to govern relations among citizens
 - Government capable of enforcing these rules

James Rachels's Definition

“**Morality** consists in the set of rules, governing **how people are to treat one another**, that rational people will agree to accept, for their mutual benefit, on the condition that others follow those rules as well.”

Kinds of Rights

- **Negative right:** A right that another can **guarantee by leaving you alone (right for privacy)**
- **Positive right:** A right obligating others to **do something on your behalf (right for education)**
- **Absolute right:** A right guaranteed without exception (right for live, right from protection of slavery)
- **Limited right:** A right that may be restricted based on the circumstances (the right to liberty, which can be lawfully restricted. Lawful arrest is an example of a limited right)

Correlation between Types of Rights

- Positive rights tend to be more limited
- Negative rights tends to be more absolute

Contractarianism

What is **contractarianism**?

- also known as **rights-based** ethics or **social contract theory**
- moral system is based on **contractual agreements** between people
- **rights** are justified **constraints** on how others may act towards you
- **legal** rights (law and legislation) and **moral** rights

Contractarianism

- Organisational context continued...
 - contractarianism appeals to **businesses**
 - **moral** decision making involves the weighing of different **moral factors**
 - organisations have their **own legitimate goals to pursue**
 - moral rights, in particular **human rights** are crucial in most moral deliberations in organisations for example: obligations to stockholders, employees, and consumers may pull an organisation in different directions.
 - Before it acts, and morally responsible business or non-business organisation must consider carefully **how its actions will impose on the rights of individuals (not just the rights of others, such as consumers)**
 - **Moral rights** place distinct and firm **constraints** on what sorts of things an organisation **can do to fulfil its own needs.**

Contractarianism

- Thomas Hobbes (1588-1679)

- **fundamental** beliefs

- state of nature
 - **all humans are self-interested**
 - only survive by **banding together**

- social contracts

- provides motivation for moral behavior
 - moral system built on **contractual agreements between individuals**
 - we **need** one another to **survive and prosper**
 - These rules of **mutual agreement** are called *laws* and they guarantee our protections or *rights*. The system of laws and rights that make up the **society is called the social contract.**



Contractarianism

continued...

- **Benefits**
 - better social **cohesion** : **shared values** and communities of interpretation
 - lie, **cheat** and steal not ethical
 - **ethical behavior** norm
 - greater **peace** of **mind**

Contractarianism

continued...

- **Types** of Social Contracts
 - legal contracts and moral contracts
 - both are based on **rights of individuals** or **groups**
 - both **place** obligations on us to **respect these rights**
 - how do they differ?

Contractarianism

continued...

Legal Contracts	Moral contracts
External	Internal
Decided by law-makers	Decided by community culture
Enforced by law officers of the community	Personal and community relationships affected

Contractarianism

continued...

- Civilised Society
 - moral rules to govern relations among citizens
 - government capable of enforcing these rules (basis of legal system)
 - focus on developing common good
 - tension between self-interest and common good

Virtue Ethics Theory

Virtue ethics

Virtue ethics is a normative ethical theory that emphasizes a person's character traits over rules or consequences. It focuses on living a good life by cultivating virtues, or moral habits.

VIRTUE ETHICS

Virtue ethics is a moral philosophy that emphasizes individuals' character and personality traits instead of their actions.

EXPLANATION

Virtue ethics holds that an individual's ethical behavior should be measured by their trait-based characteristics such as honesty, courage, and wisdom, rather than by the consequences of their actions or the particular duties they are obliged to obey. This approach emphasizes cultivating good virtues.

CENTRAL CONCEPTS

1. **Virtue (aretê)** - Refers to genuine moral excellence of character.
2. **Eudaimonia** - humans should act in ways that seek purpose and meaning.
3. **Practical Wisdom (phronêsis)** - refers to the importance of rational decision-making based on empirical evidence.

Critique of Enlightenment Theories

- Kantianism, utilitarianism, social contract theory ignore important moral considerations
 - moral education
 - moral wisdom
 - family and social relationships
 - role of emotions
- Virtue ethics
 - *arete*, virtue, excellence: reaching highest potential

Virtues and Vices

- Two types of virtue
 - **intellectual virtues**: virtues associated with reasoning and truth
 - **moral virtues**: virtues of character (e.g., honesty)
- Moral virtues
 - developed by habitually performing right action
 - **deep-seated character traits**
 - disposition to act in a certain way *and* feel in a certain way

Aristotle: Happiness derives from living a life of virtue.



Summary of Virtue Ethics

A right action is an action that a virtuous person, acting in character, would do in the same circumstances.

A virtuous person is a person who possesses and lives out the virtues.

The virtues are those character traits human beings need in order to flourish and be truly happy.

Vices (Evil/Sin)

- Vices are opposite of virtues
- Vice: a character trait that prevents a human being from flourishing or being truly happy
- Often, a virtue situated between two vices
 - Courage between cowardliness and rashness
 - Generosity between stinginess and prodigality

Case for Virtue Ethics

- It often makes more sense to focus on virtues than obligations, rights, or consequences
- Personal relationships can be morally relevant to decision making
- Our moral decision-making skills develop over time
- With this theory there are no irresolvable moral dilemmas
- Emotions play an important role in living a moral life

Case Against Virtue Ethics

- Reasonable people may disagree on character traits needed for human flourishing
- Cannot use virtue ethics to guide government policy
- Virtue ethics undermines attempts to hold people responsible for their bad actions
- Despite weaknesses, virtue ethics a workable theory

Comparing Workable Ethical Theories

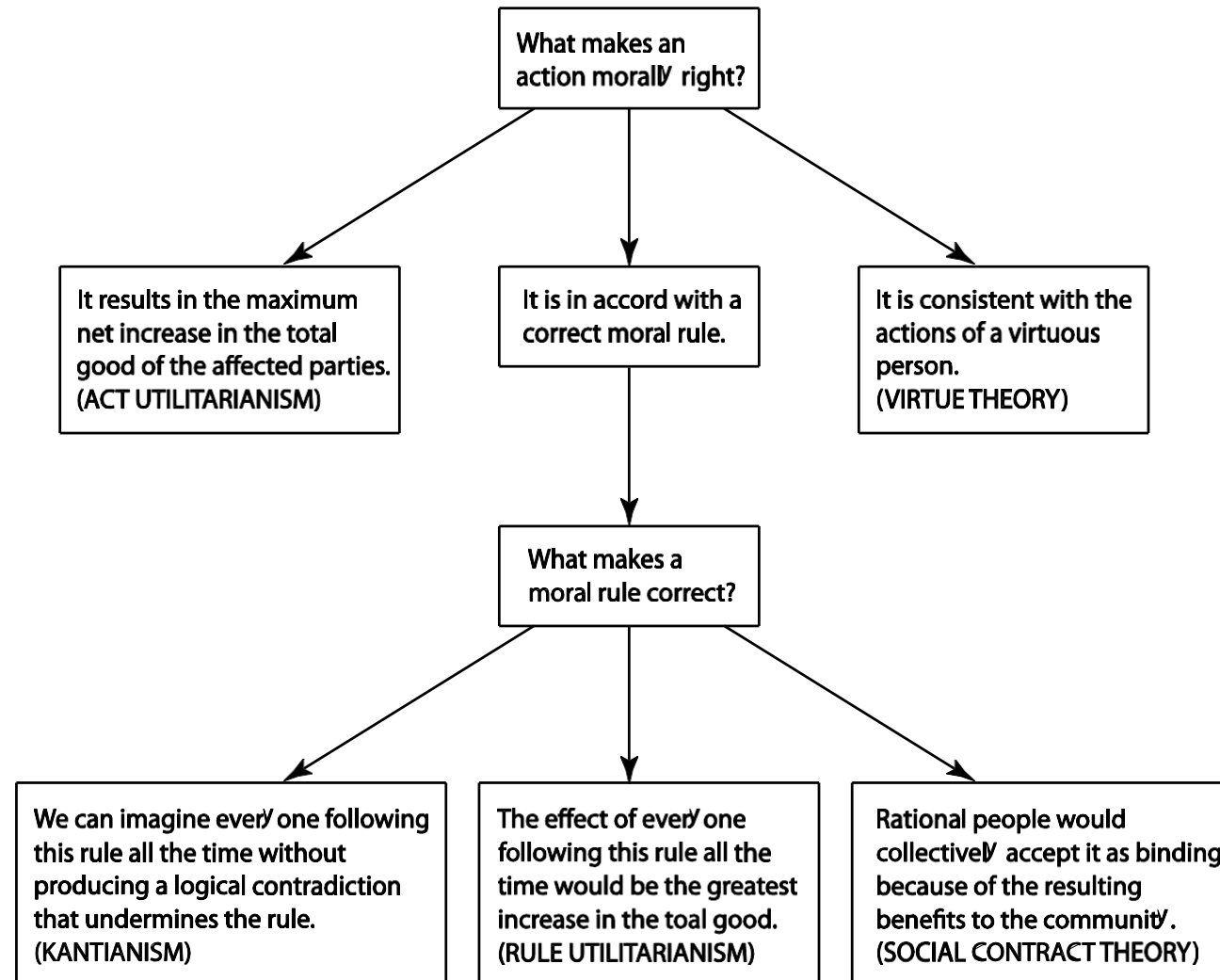
Objectivism vs. Relativism

- **Objectivism**: Morality has an existence outside the human mind
- **Relativism**: Morality is a human invention
- Divine command theory, ethical egoism, Kantianism, utilitarianism, social contract theory, and virtue ethics **examples of objectivism**

Workable Ethical Theories

- We seek theories with these characteristics:
 - Based on the ethical point of view
 - Objective moral principles developed using logical reasoning based on facts and commonly held values
- **Workable ethical theories**
 - Kantianism
 - Act and rule utilitarianism
 - Social contract theory
 - Virtue ethics

Comparing Workable Ethical Theories



Morality of Breaking the Law

Social Contract Theory Perspective

- Everyone in society bears certain burdens in order to receive certain benefits
- **Legal** system supposed to guarantee people's **rights are protected**
- Everything else being **equal**, we should be **law-abiding**
- Should only break law if compelled to follow a higher-order moral obligation

Social Contract: A Prima Facie Obligation to Obey the Law



Kantian Perspective

- Everyone wants to be **treated justly**
- Imagine rule: “**I may break a law I believe to be unjust**”
- If everyone acted according to this rule, then laws would be subverted
- Contradiction: Cannot both wish to be treated justly and allow laws to be subverted

Rule Utilitarian Perspective

- What would be consequences of people ignoring laws they felt to be unjust?
- Beneficial consequence: Happiness of people who are doing what they please
- Harmful consequences: Harm to people directly affected by lawless actions, general loss of respect for laws, increased burden on criminal justice system
- Harms greater than benefits

Act Utilitarian Perspective

- Possible to conceive of situations where **benefits of breaking law exceed harms**
- Suppose give penniless, bedridden friend copy of CD
- Friend benefits by \$15 (value of CD)
- I benefit by \$10 (satisfaction of helping friend)
- Harms of \$0 (no lost sale, no police involvement)
- With \$25 of benefit and \$0 of harm, action is determined to be good

Summary

Insights Offered by Various Theories

- **Kantianism**: Every person is equally valuable, and when you interact with other people you should always respect them as rational beings.
- **Utilitarianism**: You should consider the consequences of an action before deciding whether it's right or wrong.
- **Social contract theory**: We should collectively promote human rights, such as the rights to life, liberty, and property.
- **Virtue ethics**: You can count on a good person to do the right thing at the right time in the right way.

It's Up to You

- You *can* consider **duties and rights** and **consequences and virtues** when making moral decisions
- Ultimately, you have to decide:
 - What kind of person do I want to be?
 - What kind of world do I want to live in?